IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.201

C.A.(CAA)/35(AHM)2023

Proceedings under Section 230-232

IN THE MATTER OF:

Sandeep Textile Dysetuff Pvt Ltd **.....Applicants**
Sun Links India Pvt Ltd

Order delivered on: 05/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Alpesh Paliwal, PCS
For the Respondent :

CLARIFICATION ORDER

The instant Company Application was heard and reserved for passing of order on 21.06.2023. On perusal of documents annexed with the application, it is noted that,

1. No mention with respect to the applicability of Section 5 and Section 6 of the Competition Act, 2002 is found, nor has any affidavit been filed in this regard.

2. There is no disclosure regarding activities carried out by the applicant companies are regulated by RBI or not.

3. The list of equity shareholders of the Transferor Company and Transferee Company which is annexed in the application on Page No. 136 and 140 respectively is on record, however, no CA certificate certifying the same has been placed on record.

4. Accordingly, this matter has been released for further clarification. The Ld. Counsel for Applicants – Sandeep Textile Dysetuff Pvt Ltd & Sun Links India

Pvt Ltd, undertakes to file the reply on the said clarification along with required documents.

5. List the matter for further on 11.07.2023.

-Sd-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

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